

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD.
AND OCEAN NETWORK EXPRESS (NORTH AMERICA) INC.**

—
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c)

**BOE MOTION TO DISMISS RESPONDENT OCEAN NETWORK EXPRESS (NORTH
AMERICA) INC. WITHOUT PREJUDICE**

Pursuant to Rule 70 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.70, Commission Rule 12, 46 C.F.R. § 502.12, and Rule 41(a)(2) of the Federal Rules of Civil Procedure, the Bureau of Enforcement (“BOE”) moves to dismiss Respondent Ocean Network Express (North America) Inc. (“ONE NA”) from the above proceeding without prejudice.

On February 4, 2022, ONE NA along with Respondent Ocean Network Express PTE. LTD. (“ONE PTE”) filed a Motion to Dismiss (“MTD”). In the Presiding Officer’s Order Denying the MTD, the presiding office gave “the parties an opportunity to conduct discovery, clarify the roles of each entity, and brief the merits of the proceeding.”

The Parties have engaged in discovery. ONE NA has been obstructive and has denied BOE necessary documents, thus leaving the record incomplete. As a result, BOE is unable to determine if ONE NA is a VOCC. As discovery closes on May 2nd, 2022, BOE has decided to drop ONE NA in this proceeding.

For the above reasons, BOE requests the Presiding Officer grant BOE’s Motion to Dismiss Respondent ONE NA without prejudice.

DATED April 22, 2022

Respectfully submitted,

Theron R. Korsak  Digitally signed by Theron R.
Korsak
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CERTIFICATE OF SERVICE

I hereby certify that on this 22nd day of April 2022, a copy of the foregoing document has been served upon all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020.

Theron R. Korsak  Digitally signed by Theron R.
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